

STATE OF NEW YORK

5402--B

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sens. HOYLMAN-SIGAL, FERNANDEZ, HARCKHAM, JACKSON, KAVANAGH, MARTINEZ, SERRANO, SKOUFIS, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to protecting wolves; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The environmental conservation law is amended by adding a new section 11-0541 to read as follows:

§ 11-0541. Protection of wolves.

1. All wild canids taken in the state shall be reported to the department in a manner to be determined by the department. For purposes of this section, "wild canids" shall mean coyotes and wolves, including canids that when taken were thought to be coyotes but which subsequent genetic analysis revealed to be wolves.

2. Wild canids that are taken, that have a weight greater than fifty pounds or that meet additional criteria established by the department in regulation, shall be submitted to the department, in a manner prescribed by the department in regulation. Such regulations shall ensure the anonymity of all personal identifying information, excluding information relating to the location of taking. Wild canids submitted shall be subject to genetic analysis, paid for by the department, to determine the genetic composition of the animal. Such analysis shall be conducted by a reputable laboratory that has prior experience genotyping hybridized Canis populations in the eastern United States. The results of any

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD01452-10-5

1 analysis performed shall promptly be provided to the public by posting
2 on the department's website.

3 3. The department may also accept for genetic analysis a wild canid
4 meeting the criteria in subdivision two of this section that is volun-
5 tarily submitted, in a manner prescribed by the department, to the
6 department by any person.

7 4. In the event that the department determines, based on genetic anal-
8 ysis or other scientific method, that a wild canid taken or found in the
9 state is a wolf, the department shall determine the location where the
10 wolf was taken or found. In the event the department determines that
11 there is reasonable likelihood that there may be one or more additional
12 wolves in the vicinity where the wolf was taken or found, it may take or
13 institute such measures consistent with its existing authority that it
14 deems necessary to ensure the protection of such additional wolf or
15 wolves.

16 5. No later than April first, two thousand twenty-eight, the depart-
17 ment shall submit to the legislature a report on the status of wolves in
18 the state, based on data collected by or submitted to the department and
19 such other methods as determined appropriate by the department, and a
20 recommendation as to whether the wild canid testing program should be
21 continued. The status report shall also be posted on the department's
22 website.

23 6. The department shall modify, and update as necessary, the syllabus
24 required under subdivision two of section 11-0323 of this article, to
25 include the legal protections for wolves, the testing and reporting
26 requirements for wild canids under this section, and how to distinguish
27 a wolf from a coyote when a hunter or trapper is in the field.

28 § 2. This act shall take effect January 1, 2026 and shall expire and
29 be deemed repealed January 1, 2029. Effective immediately, the addition,
30 amendment, and/or repeal of any rule or regulation necessary for the
31 implementation of this act on its effective date is authorized to be
32 made and completed on or before such date.